City and County of San Francisco
Department of Building Inspection

London N. Breed, Mayor
Patrick O'Riordan, C.B.O., Director

To: Members of the Board of Supervisors

From: Patrick O'Riordan

Date: January 7, 2025

Re: Resolution No. 547-24 Report to the Board of Supervisors

Sensible Density Working Group Report

On December 4, 2024, the San Francisco Board of Supervisors transmitted Resolution No. 547-24 to the City Attorney, Planning Director, Fire Marshal, and Director of the Department of Building Inspection (DBI). This resolution urged the creation of a Sensible Density Working Group to be made up of members of DBI, the Fire Department and Planning Department, with legal assistance from the City Attorney's Office. The Working Group is responsible for studying how to safely allow single-stair building typologies in up to six-story buildings within San Francisco, developing recommendations to inform a bulletin on building code equivalencies for these buildings, and identifying potential changes to the Planning Code.

While the departments have been having occasional conversations about this topic for the past several months, File No. 547-24 spurred a more formal dialogue, including the creation of the Sensible Density Working Group. The following city staff were identified as delegates to the Working Group, as they possess relevant expertise and manage areas within their Departments likely to be impacted by a change in policy or code regarding single-stair structures up to six stories:

- Ken Cofflin, Fire Marshal, San Francisco Fire Department
- Darius Luttropp, Chief of Operations, San Francisco Fire Department
- Neal Cavellini, Chief, San Francisco Fire Department
- Patrick Rabbitt, Chief, San Francisco Fire Department
- Elizabeth Watty, Director of Current Planning, Planning Department
- David Winslow, LEED AP, Principal Architect, Current Planning, Planning Department
- Lisa Gluckstein, Housing and Land Use Advisor, Office of the Mayor
- Judson True, Director of Housing Delivery, Office of the Mayor
- Christine Gasparac, Assistant Director, Department of Building Inspection
- Neville Pereira, Deputy Director of Permit Services, Department of Building Inspection
- Mary Wilkinson-Church, Permit Services Manager, Department of Building Inspection
- Jimmy Cheung, Plan Review Services Manager, Department of Building Inspection
- Tate Hanna, Legislative Affairs Manager, Department of Building Inspection

The Working Group met several times starting on September 23rd, 2024. The first few meetings focused on developing a shared understanding of the proposal and establishing desired outcomes.

On November 20, 2024, Stephen Smith, Executive Director at the Center for Building, Ed Mendoza, Policy Director at Livable Communities Initiative, and Derek Sagehorn, with Easy Bay for Everyone, discussed with the group their analysis and recommendation for allowing these structures and how they are a benefit to the cities that permit them. The advocates explained how other jurisdictions, such as New York City and Seattle, have amended their codes to allow the construction of these buildings and what requirements were heightened or restrictions added to accommodate these structures. These changes included mandating specific construction materials, requiring pressurized or external stairwells, limiting unit count or floor size, and numerous other options for minimizing the hazard of a single-stair building between four and six stories. While San Francisco has unique topographical and seismic challenges, it was instructive to analyze and review how New York City, Seattle, and other cities have implemented the policy.

In addition, the Working Group reviewed how other jurisdictions manage public safety of the structures. Working Group members shared their experiences either working in jurisdictions that allow for these building typologies, as well as conversations they had with their counterparts in other jurisdictions that permit these structures. The advocates noted that there are no recorded fatalities from a fire in single-stair structures permitted in other U.S. cities, but life safety is and will remain the top concern for DBI and the Fire Department.

While data specific to these types of buildings is difficult to collect, anecdotally, City staff indicated that other jurisdictions that permit this building typology still have a limited number of these structures. The Working Group noted the need to balance the benefits these structures can bring for sensible density, while ensuring adequate safety requirements.

The Working Group also reviewed Assembly Bill 835 by Assemblymember Alex Lee. This law, passed in 2023, tasks the State Fire Marshal with researching standards related to single-exit, single stairway residential buildings above three stories. The Fire Marshal, by January 1, 2026, will report back to the Legislature, as well as the California Building Standards Commission, with findings related to fire and life safety, as well as emergency activities in these buildings.

With the intent of the Working Group laid out, the basis of the policy change well understood, and the methods and challenges of other jurisdictions clearly detailed, the Working Group posed the specific questions and work needed to properly respond to and accomplish the goals laid out in File No. 547-24:

- What changes are needed to the San Francisco Building Code, Fire Code, Planning Code, and other codes to permit single-stair residential buildings of four to six stories in height?

- What, if any, additional requirements need to be placed on single-stair residential buildings of four to six stories in height to ensure they are as safe as their multi-stair counterparts?

- Does the requirement for local building codes to be no less stringent than state code preempt this policy or can a local equivalency be identified that ensures compliance with state code while permitting single-stair buildings up to six stories?

- If this policy is pursued, what information must be conveyed in an Administrative Bulletin or other format to inform applicants of the option and the associated requirements?

To answer these questions, Working Group members will be assigned aspects of the code to review and propose amendments necessary to permit these buildings. These proposals will also include recommendations for heightened safety requirements, with the rationale for any proposed change provided to the Working Group for review. Additionally, Working Group members will draft internal policies to detail how each department will manage this new building typology during the permitting process. Simultaneously, the Working Group will consult with the City Attorney's Office to determine the legality of the proposed local amendments and whether San Francisco is preempted by the state on this issue.

If the final determination is to pursue this policy in San Francisco, the Working Group will work with the City Attorney's Office to draft an ordinance that codifies these changes and work with the Mayor's Office and Board of Supervisors to identify a sponsor for the legislation. The legislative process will provide ample time and opportunity for review of the ordinance by external stakeholders, as well as the opportunity to incorporate any changes deemed necessary.

While there are still outstanding policy and process questions, the Working Group has established a foundation to keep the relevant departments and their ongoing discussions moving forward, advancing the potential for the city to allow single-stair buildings up to six stories and bolstering our ability to encourage sensible density in San Francisco.

Thank you,



Patrick O'Riordan, C.B.O.
Director, Department of Building Inspection